

25STCV36196 25STCV36196

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Case Number: 25STCV36196 Hearing Date: August 5, 2026 Dept: 617

Dept.

617

Date:

8-5-26

Case

#: 25STCV36196

Trial

Date: None Set

COMPEL ARBITRATION

MOVING

PARTY: Defendant, Harborview Center, LLC

RESPONDING

PARTY: Plaintiff, Anntionette Rushing

RELIEF

REQUESTED

Motion

to Compel Arbitration and Stay Action

SUMMARY

OF ACTION

Plaintiff

Anntionette Rushing sued her former employer, Defendant Harborview Center, LLC, after she was terminated from her position as a vocational nurse. Plaintiff asserts numerous claims under the Fair Employment and Housing Act (FEHA) and the Labor Code.

RULING: Granted.

Evidentiary Objections: Overruled.

Defendant

moves to compel arbitration under the Mutual Arbitration Agreement (Agreement). Plaintiff opposes the motion, challenging the Agreement's authenticity, formation, and enforceability. Defendant's motion is granted.

"A

written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.) "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement." (Id. § 1281.2.)

Defendant moves to compel arbitration under the Federal

Arbitration Act (FAA). The Agreement explicitly states that it is governed by the FAA. [Rodriguez Decl. ¶ 8, Ex. A, ¶ 1.] This is sufficient to invoke

application of the FAA to the arbitration agreement. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.) While the FAA

governs the rules for conducting arbitration, barring citation to a case

precluding California law, motions to compel arbitration are still governed by

California law. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th

1104, 1119; *Viking*

River Cruises, Inc. v. Moriana (2022) 596 U.S. 639, 653; *Volt Information Sciences, Inc. v. Board of Trustees of Leland*

Stanford Junior University (1989) 489 U.S. 468, 477-79; *Victrola 89, supra*, 46

Cal.App.5th at p. 346.)

The law creates a general presumption in favor of arbitration. In a motion to compel arbitration, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial (e.g., fraud, unconscionability, etc.). (Rosenthal v. Great Western Fin'l Securities Corp. (1996) 14 Cal.4th 394, 413-14; Hotels Nevada v. L.A. Pacific Ctr., Inc. (2006) 144 Cal.App.4th 754, 758.) Any challenges to the formation of the arbitration agreement should be considered before any order sending the parties to arbitration. The trier of fact weighs all evidence, including affidavits, declarations, documents, and, if applicable, oral testimony to determine whether the action goes to arbitration. (Hotels Nevada, supra, 144 Cal.App.4th at p. 758.)

The moving party bears the initial burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) This burden may be met "by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature" or "setting forth the agreement's provisions in the motion." (Id. at p. 165.) If the opposing party disputes the agreement, then the burden shifts to the opposing party to produce "evidence to challenge the authenticity of the agreement." (Ibid.) The opposing party can do this by testifying under oath or declaring under penalty of perjury "that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.) If the opposing party meets its burden, the burden then shifts to the moving party to "establish with admissible evidence a valid arbitration agreement between the parties." (Ibid.) "The burden of proving the agreement by a preponderance of the evidence remains with the moving party." (Id. at p. 166).

While Defendant has satisfied its initial burden, Plaintiff has also met her burden to challenge the authenticity of the arbitration agreement. Defendant meets its initial burden because it submits a copy of the Agreement containing Plaintiff's electronic signature. [Rodriguez Decl. ¶ 8, Ex. A.] The Agreement covers Plaintiff's claims because it covers "all claims arising from or relating to Individual's employment with Company, including Individual's application for employment, Individual's employment (if

hired), the terms and conditions of Individual's employment, and any termination of employment” [Id. Ex. A, ¶ 1.] In response, Plaintiff states in her declaration that she does not recall “signing any document about arbitration or dispute resolution or jury trials.” [Rushing Decl. ¶ 4.] This is sufficient to challenge the authenticity of an electronic signature. (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846.) Defendant's reliance on Iyere v. Wise Auto Group to argue the insufficiency of Plaintiff's failure to recall signing the Agreement is misplaced as that case's holding is cabined to handwritten signatures. ((2023) 87 Cal.App.5th 747, 757 [“[A]n individual is capable of recognizing his or her own personal signature. If the individual does not deny that the handwritten personal signature is his or her own, that person's failure to remember signing is of little or no significance.”].) The burden therefore shifts to Defendant to prove the existence of the arbitration agreement by a preponderance of the evidence.

Defendant has met its ultimate burden to prove the existence of an agreement to arbitrate Plaintiff's claims. Defendant submits the declaration of its Human Resources Manager, Salvador Rodriguez, who is “familiar with the online application and onboarding system used by Harborview during the length of [Plaintiff's] employment with Harborview.” [Rodriguez Decl. ¶ 1.] He states that during Plaintiff's employment, Defendant used the “web-based platform” iCIMS to electronically deliver documents to applicants and new hires. [Id. ¶ 4.] To apply for a position and access these documents, applicants needed to “create an account using their personal email address, unique username, and private password.” [Id. ¶ 5.] Documents, including the Agreement, were signed by clicking on a “signature box.” [Id. ¶ 7.] “Once the electronic signature was executed, the system recorded the employee's name, date, and time of signature. This information provided a unique digital signature from the employee that could only be executed after securely logging into their profile on the iCIMS platform.” [Ibid.] The Agreement itself indicates that Plaintiff signed it on August 1, 2024 at 5:11 AM. [Rodriguez Decl. ¶ 8, Ex. A.] Based on these facts and iCIMS's processes, Rodriguez concludes that “Plaintiff's name could only have been placed on the signature page of the Arbitration Agreement using her iCIMS account, which could only be accessed using her unique username and password, and by then clicking on the signature box to place the electronic signature.” [Id. ¶ 9.] This evidence is sufficient to show that the electronic signature was “the act of” Plaintiff. (Ruiz, supra, 232 Cal.App.4th at p. 846.)

Plaintiff's specific formation arguments are unavailing. She argues that an agreement to arbitrate her claims still cannot exist because she did not submit her employment application until August 2, 2024, a day after she signed the Agreement, and that certain documents in her personnel file identify "Alpine Special Treatment Center, Inc." as her employer. The Agreement, however, was part of the application process and the order in which Plaintiff chose to complete her forms has no bearing on her assent to the Agreement. [See also Rodriguez Decl. ¶ 8, Ex. A, ¶ 9 ["By signing below and continuing this application process, Individual is acknowledging that Individual has read and understands this Agreement"].] Furthermore, that documents in Plaintiff's personnel file appear to list Alpine as her employer is irrelevant to whether she agreed to arbitrate her claims with Defendant, the alleged employer Plaintiff identified in her complaint. Defendant has therefore proven the existence of an agreement to arbitrate Plaintiff's claims.

Because the Agreement involves arbitration of Plaintiff's unwaivable statutory rights under the FEHA, the attention turns to its compliance with the requirements articulated in *Armendariz v. Foundation Health Psychcare Services*. An agreement to arbitrate FEHA rights is lawful if it: "(1) provides for neutral arbitrators, (2) provides for more than minimal discovery, (3) requires a written award, (4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum." (*Armendariz v. Foundation Health Psychcare Services* (2000) 24 Cal.4th 83, 102.)

The Agreement meets all the *Armendariz* requirements. It provides for arbitration before a neutral arbitrator, does not limit discovery, requires a "written award setting forth findings of fact and conclusions of law," and the arbitrator has "the authority to award the same remedies and order the same relief to individual claimants as would have been available in court." [Rodriguez Decl. ¶ 8, Ex. A, ¶ 4.] That the arbitrator also has the authority to apply Federal Rule of Civil Procedure 68's cost-shifting provisions does not expose Plaintiff to a fee award otherwise unavailable in court. A prevailing defendant in a FEHA action "shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so." (Gov. Code, § 12965, subd. (c)(6).) Thus, the arbitrator, limited to determining disputed claims "consistent with

controlling law,” must also apply this standard in awarding any fees to Defendant. [Rodriguez Decl. ¶ 8, Ex. A, ¶ 4.] The Agreement thus does not impose unreasonable costs or fees on Plaintiff as a condition of arbitration and satisfies all the Armendariz requirements.

The Court next considers Plaintiff's lone defense to enforcement of the Agreement on unconscionability grounds. Plaintiff argues that the Agreement is procedurally unconscionable because it was a contract of adhesion imposed on her before she submitted her application. She contends that the Agreement is substantively unconscionable because it incorporates the aforementioned cost-shifting provision of Federal Rule of Civil Procedure 68.

Unconscionability claims have both a procedural and substantive element. (Stirlen v.

Supercuts, Inc. (1997) 51 Cal.App.4th 1519, 1531.) “Procedural unconscionability” concerns the manner in which the contract was negotiated and the circumstances of the parties at that time.

(Kinney v.

United HealthCare Services, Inc. (1999)

70 Cal.App.4th 1322, 1329.) “The procedural element focuses on two factors: “oppression” and “surprise.”

“Oppression” arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice. “Surprise” involves the extent to which the supposedly agreed-upon terms of the bargain are hidden in the prolix printed form drafted by the party seeking to enforce the disputed terms.” (Stirlen, supra, 51 Cal.App.4th at p. 1532.) “Substantive unconscionability” involves contracts leading to “overly harsh” or “one-sided” results. (Ibid.) “[U]nconscionability turns . . . on an absence of justification for it” and therefore “must be evaluated as of the time the contract was made.” (Ibid.)

The Agreement is not unconscionable. Only a “low level” of procedural unconscionability exists given the adhesive nature of the contract. (Alvarez v. Altamed Health Services Corp.

(2021) 60 Cal.App.5th 572, 591.) Plaintiff cites Wisdom v. AccentCare, Inc.

(2012) 136 Cal.Rptr.3d 188 to show a presence of heightened procedural unconscionability for arbitration agreements in the application process;

however, that case has been superseded by the Supreme Court. In any event, no substantive unconscionability exists because, as explained above, the arbitrator is limited to determining the parties' dispute “consistent with controlling law,” including the FEHA-specific fee-shifting provision for prevailing defendants. [Rodriguez Decl. ¶ 8, Ex. A, ¶ 4.] The Agreement is therefore not unconscionable.

Defendant's

motion is thus granted. Plaintiff and Defendant Harborview Center, LLC to participate in arbitration.

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.) The action is stayed.

Defendant to give notice.